

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/16/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0000794

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: KYLE BALOUGH

and

RESPONDENT: ANNA NEMETULAYEVA

NATURE OF PROCEEDINGS: REQUEST FOR ORDER– CHILD CUSTODY/VISITATION

RULING

This matter is before the Court on Respondent/Mother's April 30, 2026, Request for Order (RFO) for a modification to for custody and visitation requesting more time with the parties' daughter, London (DOB: 02/18/2023). Petitioner /Father filed a Responsive Declaration on June 26, 2026.

On December 08, 2025, a Domestic Violence Restraining Order (DVRO) was issued in case FL000841 with Mother as the restrained party. The order will expire on July 22, 2027. The DVRO granted Father sole legal custody of London, and the parties share joint physical custody of the child. Mother only has joint legal custody as to health and medical decisions regarding the child. The visitation schedule outlined in the Findings and Order After Hearing on September 13, 2024, would remain in effect. On December 11, 2025, a DVRO was issues with Father as the restrained party. The order will expire on July 22, 2027, and had the same orders.

Mother requests joint legal and physical custody, a week on/week off parenting time schedule with exchanges every Sunday at 4:00 PM in Vallejo Police Station as well as a holiday schedule. Mother also requests child abduction prevention orders because Father moved to Sacramento.

Father requests that Mother's requests be denied, but he does agree that there are some aspects of the orders need to be clarified, one of which Mother's involvement in legal decisions as he states Mother continues to attempt to obstruct routine medical care.

Matter to be continued with referral to Marin Family Court Services

Mother's RFO is continued for 6 weeks to August 26, 2026, and the parties are re-referred to Family Court Services (FCS) as FCS interviews were not completed.

The Court will prepare the Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/16/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002319

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: ROSA MARIA AGUILAR
ORTEGA

and

RESPONDENT: VICTORIO GARCIA
TORRES

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – SPOUSAL SUPPORT

RULING

Procedural History

This matter is before the Court on Petitioner/Wife April 16, 2026, Request for Order (RFO) for a change in spousal support. Respondent/ Husband filed a responsive declaration dated May 8, 2026, opposing the request for order, stating that Wife had failed to comply with Marin County Superior Court Local Rules (MCR), Family 7.13. On June 11, 2026, Wife's RFO was continued to July 16, 2026, to give Wife time to file her financial documents in compliance with MCR Fam 7.13.

On June 29, 2026, Wife filed both her Income and Expense (IED) declaration as well as her 2024 and 2025 taxes. In her IED, Wife reports the following:

- She is self-employed and made \$2,756 in wages and \$1,100 in rental income.
- She also reports having \$3,820 a month in expenses.

Wife's federal tax returns show the following:

- Wife's 2025 taxes report annual net profit from her housecleaning business, after expenses, of \$9,832, which includes \$1,601 car/truck expenses and \$912 for cellular service. These expenses, while valid expenses for tax purposes, inure to Wife's benefit and can be added back, which increases Wife's profit to \$12,345 annually, or \$1,029 per month.
- Wife's 2025 tax return also reports \$64,094 in gambling income, or \$5,341 per month.

On May 8, 2026, Husband filed both his Income and Expense (IED) declaration as well as his 2024 and 2025 taxes. Along with his IED, Husband submitted pay stubs for his jobs.

Husband's works a total of 70 hours/week at two jobs; at the Good Earth and at Marinwood Markets. Husband's income from Good Earth, based on his 3 pay stubs, is \$5,382 a month. His income from Marinwood Market, based on his 3 pay stubs, is \$3,987 a month,